

Policy conditions

Disability insurance (AOV)

Public sector, educational institutes, energy and utility companies

General Terms and Conditions

Public sector, educational institutes, energy and utility companies - 1 April 2021

Section II

Special Terms and Conditions

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Section I General Terms and Conditions

These conditions only apply to insured persons who, in the event of disability, are entitled to a benefit under the WIA.

Article 1 What do we mean by certain terms?

Where we use the following terms or words in these conditions, we mean the following:

1.1

We

ASR Schadeverzekering N.V., with its registered office in Utrecht, trading as Loyalis, with its registered office in Heerlen, hereinafter referred to as Loyalis.

1.2

Policyholder

The party who has taken out the insurance with us. This may be you, or your employer, for example.

1.3

Insured party

The person whose risk of disability is insured with us.

1.4

You

The insured.

1.5

Insured annual income

Your uncapped annual income as defined in Article 7.1 of the *ABP Pensioenreglement* (ABP Pension Regulations) as pensionable income. This pensionable income is calculated in the manner set out in Article 7.1.1 of the ABP Pension Regulations.

1.6

WIA

The Dutch *Wet werk en inkomen naar arbeidsvermogen* (Work and Income (Capacity for Work) Act).

1.7

IVA

The Dutch *Regeling Inkomensvoorziening Volledig Arbeidsongeschikten* (Fully Disabled Persons Income Scheme).

1.8

WGA

The Dutch *Regeling werkhervatting gedeeltelijk arbeidsgeschikten* (Return to Work (Partially Disabled Persons) Regulations).

1.9

First day of sick leave

The first day you do not work due to illness, defect or an accident according to information from the UWV. We regard several, successive periods of illness (whether or not due to different causes) as a single period if the intervening period is less than four weeks.

1.10

Waiting period

You are not entitled to benefits if a waiting period has been agreed with you and you become ill during the waiting period. The maximum waiting period is 48 months and is stated in the insurance certificate. The waiting period commences on the insurance commencement date. We do not invoke the waiting period if you have become incapacitated for work due to an accident during the waiting period.

1.11

Dismissal

If you have a permanent employment contract: termination of your employment due to your disability. If you have a fixed-term employment contract: the end of your (initially insured) employment by operation of law. We also consider a formal adjustment in your employment on account of your disability as constituting termination. By 'dismissal', we do not mean dormant employment or discontinuation of wage payments.

1.12

Insurance certificate

Your policy or certificate.

1.13

Insurance contract

The combination of all the provisions in these policy conditions, the contents of the insurance certificate and any group contracts we have concluded with the employer regarding this insurance.

1.14

Group insurance contract 'verzekering collectief'

The disability insurance that your employer has taken out with us. Your employer may recover all or part of the premium from you, with your consent.

1.15

Semi-group contract 'verzekering semi-collectief'

The contract which your employer has concluded with us, providing for all employees to take out cover on an individual basis and voluntarily against the risk of disability. The contract may also include the condition that your employer will deduct the premium from your gross salary and pay it to us. The semi-group contract is not an insurance contract.

1.16

Individual insurance contract

The disability insurance you have taken out with us, without us having a contract with your employer.

1.17

UWV

The Dutch *Uitvoeringsinstituut Werknemersverzekeringen* (Employee Insurance Agency).

1.18

Accident

An accident is understood to mean a sudden, unexpected, external force affecting the insured person's body, which can be established medically, and results directly in physical injury.

Inclusions:

We consider the following situations to constitute an accident:

1. Near-drowning;
2. sunstroke and near-freezing;
3. physical injury caused by lightning strike or other electrical discharge;
4. acute poisoning or asphyxiation caused by unintentional ingestion or inhalation of gases or vapours or of solids or liquids, with the exception of poisoning caused by consuming food or beverages or smoking tobacco, allergens and of medicines in the broadest sense;
5. near starvation, near death from thirst or near exhaustion caused by a disaster;

6. an allergic reaction or infection or contamination by penetration or ingestion of germs, (both) caused by an involuntary fall into the water;
7. wound infection or blood poisoning, resulting directly from an accident that is covered under this insurance;
8. aggravation of the consequences of an accident caused by treatment given on prescription from a physician after the accident, resulting directly from an accident that is covered under this insurance;
9. sprain, dislocation or tearing of a muscle or ligament tissue, provided it occurred suddenly and the nature and location can be established medically;
10. accident injury caused directly by giving first aid to a human or animal;
11. involuntary and sudden penetration, ingestion or inhalation of objects in the digestive tract, the respiratory tract, the eyes or the hearing organs, resulting in internal injuries.

Exclusions:

We do not consider the following situations to constitute an accident:

complications caused by medical treatment, intestinal rupture, lumbago, spinal disc herniation (hernia nuclei pulposi), inflammation of a tendon sheath (tenosynovitis crepitans), RSI, muscle strain and whiplash (coup de fouet), tennis elbow (epicondylitis lateralis), golfer's arm (epicondylitis medialis).

Article 2

What cover does the insurance provide?

2.1

Purpose of the insurance

If you become ill or incapacitated then, depending on the chosen (types of) cover, you are entitled to payment of benefits. This is dependent on you satisfying the conditions applying to the chosen (types of) cover. Further information on the types of cover is given in the 'Special Terms and Conditions'. Only the types of cover shown in the insurance certificate apply to you.

2.2

What is illness?

You are deemed to be ill if you are no longer able to do the work which you are expected to perform, causing you to be absent from work, due to a physical or mental defect (handicap) or condition, until the UWV has established the percentage of your disability.

2.3

What is disability?

We define disability as follows:

- there must be evidence of illness, disability or an accident, resulting in impairments; and
- these impairments must have been objectively established by a physician and they limit your functioning; and
- because of these functional disabilities, you are unable to earn more than 65% of your reference wage per hour, as determined by the UWV.

2.4

Disability of less than 35%

If the UWV determines that you are able to earn 65% or more of your reference wage, you are not entitled to a WIA benefit. Depending on the cover chosen, you may be eligible for an insurance payment.

2.5

How we determine your first day of sick leave and your disability

We are guided by the UWV's assessment and decision for determining the first day of sick leave and the degree and cause of your disability. Your first day of sick leave determines the time of the onset of your disability.

2.6

Which policy conditions apply?

Your first day of sick leave determines when your sickness absence started and which policy conditions apply.

2.7

Were you already incapacitated for work?

If you were already partially incapacitated for work (35-80% for the WIA or 15-80% for WAO, the Dutch *Wet op de arbeidsongeschiktheidsverzekering* (Invalidity Insurance Act) before the start of the insurance, then you are only entitled to benefits if you can demonstrate that the degree of your incapacity for work increased during the term of the insurance due to a different cause (determined by the UWV) from the causes and limitations that already existed at the time of the commencement of the insurance. You must provide evidence of the other cause and it must also be covered by the insurance. You are not entitled to benefits if your incapacity for work increases due to mental health issues, complaints that are excluded from cover, complaints that have prolonged or aggravated the existing cause of the incapacity for work or complaints that increase during the waiting period.

Article 3

What is the insurance based on?

3.1

Information that you provide

If you fill out an application form or health declaration, or provide us with other information, that information forms the basis of the insurance. You are legally obliged to answer

the questions we put to you correctly and in full. We refer to this as the 'disclosure obligation'.

3.2

What if you fail to comply with the 'disclosure obligation'?

If you fail to comply with this disclosure obligation, you may disqualify yourself from receiving benefits or the conditions may alter. We may cancel the insurance if you have misled us or have committed fraud. We may also demand that you repay us the benefits, as well as the costs we have incurred. Alternatively, we may amend the conditions of the insurance with retroactive effect, to reflect the conditions we would have agreed with you had we received correct and complete information.

Article 4A

Commencement, term and expiry of group insurance

If you are covered under a group insurance contract, this will be stated in the insurance certificate. Your employer (the policyholder) has this information.

4.1

When does the insurance commence?

The insurance and the types of cover chosen commence on the date given as the inception date in the insurance certificate, unless the date you started service is later than the effective date of insurance. The commencement date for the insurance is the date you started service. Your employer is stated as the policyholder in the insurance certificate.

4.2

What is the term of the insurance?

The term is stated in the insurance certificate that we have given to your employer. If no end date is shown in the insurance certificate, then the contract is for an indefinite period.

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4.3

When does the insurance expire?

The insurance expires on the termination of the contract between us and your employer, for whatever reason. In that case, you may be able to take out the insurance for payment of individual premiums and under individual conditions, provided that you inform us accordingly within four weeks of the termination of the contract with your employer. You will then be accepted for the new insurance without completing a medical questionnaire.

4.4

When does your membership of the group insurance contract end?

1. On the day following the date of your death.
2. On the day you become entitled to receive a state pension based on the Dutch *Algemene Ouderdomswet* (AOW).
3. When you cease to be compulsorily insured under the WIA.
4. On the termination of your employment with your employer.
5. If you have signed a waiver because you do not wish to be a member of the group insurance scheme agreed with your employer.
6. If your employer terminates the membership of the ABP.
7. If the UWV establishes that you are less than 35% incapacitated for work and your employment is terminated or changed, the original insurance will end. You can take out insurance for your new, reinstated employment regardless of your residual earning capacity.

4.5

Change of employer?

1. If you move to another employer who has agreed a group or semi-group contract with us, then you can continue your cover or you may continue your cover for the premium and under the conditions that have been agreed with your new employer. If your new employer has a semi-group contract with Loyalis, you can take out

the insurance again without a medical assessment within six months of starting work with your new employer.

2. If, within six months after the termination of your previous job, you move to another employer who has not agreed a contract with us, you may take out cover under an individual policy, under individual conditions and for an individual premium. We then do not ask you any medical questions.
This is nonetheless conditional on Dutch national statutory employee insurance being and remaining applicable to your new job. You must also notify us in writing of the change of employer within four weeks of the commencement of your new employment and return the proposal that we sent you for individual continuation of the insurance, signed, within the stipulated period.

Article 4B

Commencement, term and expiry of semi-group and individual insurance

If you are insured under a semi-group contract or if you have individual cover, this will be stated in your insurance certificate.

4.6

When does the insurance commence?

The insurance and your chosen types of cover commence on the commencement date shown in the insurance certificate. This is subject to the condition that we have received the initial premium and distribution fee(s).
If you do not wish to have this insurance, you may return the insurance certificate to Loyalis within 30 days of the date of issue, with a request to cancel the insurance.
The insurance contract will be cancelled with effect from the commencement date stated in the insurance certificate. If you do not return the insurance certificate, we will assume that you consent to the agreements we have made with you.

4.7

Provisional cover when applying for insurance

If you have applied for disability insurance, you are covered from the moment of your application until the moment that the insurance commences. We refer to this as 'provisional cover'. Further details, as well as the conditions applicable to this 'provisional cover', are given in the Special Terms and Conditions.

4.8

What is the term of the insurance?

The insurance is effective for an indefinite term. This means that no fixed expiry date is agreed, although the insurance may be cancelled or terminated in the situations referred to in Article 4.9.

4.9

When does your insurance expire?

1. If we send you notice of cancellation: on the expiry date stated in the notice.
2. On the day following the date of your death.
3. On the day you become entitled to receive a state pension based on the Dutch *Algemene Ouderdomswet* (AOW).
4. On the first day of the month following the date on which you cancelled the insurance in writing, subject to one month's notice.
5. On the effective date of new rates or conditions, if you have informed us in writing within the stipulated term that you do not agree to these changes, and therefore wish to cancel the insurance.
6. If the semi-group contract between us and your employer is terminated.
7. If it is discovered that you intentionally did not fill out the application form or health declaration truthfully, or that you failed to mention circumstances which may be of relevance to us. Then you will have failed to fulfil your legal obligation to provide information.
8. If you do not pay the premium due. In that case, we may temporarily suspend the cover or cancel the insurance entirely.

9. If you fail to properly fulfil your obligations. In that case, we may temporarily suspend the cover or cancel it entirely.
10. When you cease to be compulsorily insured under the WIA.
11. If the employment contract on which your insurance is based ends.
12. If the UWV establishes that you are less than 35% incapacitated for work and your employment is terminated or changed, the original insurance will end. You can take out insurance for your new, reinstated employment regardless of your residual earning capacity.
13. If your employer terminates the membership of the ABP.

4.10

Change of employer

1. If you move to another employer who has agreed a group or semi-group contract with us, you may continue your cover or take it out again for the premium and under the conditions that have been agreed with your new employer. If your new employer has a semi-group contract, you can take out the insurance again without a medical assessment within six months of starting work with your new employer.
2. If, within six months after the termination of your previous job, you move to another employer who has not agreed a contract with us, you may take out your cover under an individual policy, under individual conditions and for an individual premium, without having to answer medical questions. Pre-existing medical exclusions still apply. This is nonetheless conditional on Dutch national statutory employee insurance being and remaining applicable to your new job. You must also notify us in writing of the change of employer within four weeks after the commencement of your new employment and return the proposal that we sent you for individual continuation of the insurance, signed, within the stipulated period.
3. If you change jobs within the Dutch *Rijk* (central government organisations) with an interruption of six months at most, you may transfer the premium

conditions and conditions of cover under your former employer to your new employer. We refer to this as the 'mobility clause'. If this applies to you, it will be stated in your insurance certificate. You must inform us of your choice as soon as you change employer.

Article 5

Your insurance premium

5.1

How we calculate the premium

1. Basis for premium calculation
We calculate your premium based on your insured annual income in the current calendar year.
2. Adjustment of premium
The premium amount is determined annually, based on your insured annual income. If your insured annual income changes in the interim, because you switch to part-time work, for instance, or because of a change in your employment, the premium will be amended accordingly.
If you are insured individually and you pay the premium yourself, you must inform us of the change in your insured annual income yourself. If we receive notice of the change of annual income after 1 April, the effective date of the change is the first of the month following receipt of the notice. In all other cases, it is 1 January of the current year or the actual date of the change to the part-time factor, unless you give us permission to consult your pension information.

5.2

How do you pay the premium?

There are several different options for paying the premium, depending on what we agree with you or your employer.

1. Your employer pays the premium.
The group insurance contract with your employer includes agreement on how this is to be paid.
Your employer may ask you for a contribution toward the premium.

2. You pay the premium via your employer.
If your employer transfers the premium to us, you must authorise your employer to deduct the corresponding amount from your salary. You are responsible for checking that the premium is deducted monthly from your gross salary. We pass on your premium rate and other changes to your employer. In addition to the premium you also pay a one-off distribution fee to Loyalis.
3. You pay the premium yourself.
The premium is payable monthly. In addition to the premium, you also pay a one-off distribution fee. The premium and the distribution fee must be paid to us within thirty days of our request. We deduct the premiums due by direct debit at the beginning of each month. You must authorise us to make this direct debit and this authorisation must be signed and returned within the prescribed period.
4. If you fail to pay the premium or pay it on time.
 1. If you fail to pay the monthly premium or the distribution fee on time, we will send you a demand to pay the premium within 14 days. If you fail to pay, we will suspend the insurance cover. This means that you will not be entitled to benefits if you fall ill during the period of suspension.
 2. Only once you pay the full premium and/or distribution costs will the suspension be lifted, the day after receipt of the premium and/or distribution costs, and only then will you once again be able to receive benefits if you become ill after the suspended period. We will charge you any costs we incur for collecting the premium, such as debt collection costs.
 3. If you stop paying the premium altogether, we will terminate the insurance. In that case, you must still pay the premiums until the expiry date of the insurance policy. If you receive benefits from us, we may deduct any unpaid premium and any other costs from our benefit payments to you.

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5.3

Can you get a refund of the premium?

1. On termination of the insurance, you may obtain a refund of premium paid during the period in which there was no further risk for Loyalis.
2. If the insurance is terminated with retroactive effect, any excess premium paid will be refunded to you after deduction of any (administrative) costs which are incurred, up to a maximum of 15% of the premium.
3. If you have intentionally given us incorrect or incomplete information, prompting us to cancel the insurance, we will not refund the premium.

5.4

When do you no longer need to pay premium?

Your policy states when you no longer need to pay premium. This can be:

1. a. If your employment has been terminated on the grounds of disability and you are also entitled to WIA benefits, you need pay no more premium for the chosen types of cover from the date of termination; or
b. From the effective date of the WIA benefits.

The above does not apply if Article 7 applies.

2. Depending on the insured cover, the obligation to pay premiums ceases to apply on the first of the month following the date two or five years before the time at which you become entitled to state pension. The insurance certificate makes clear what is applicable to you.

5.5

Statement to tax authorities

If we are legally required to do so, we will inform the tax authorities of how much premium you have paid or been refunded. We will also inform the tax authorities of any change in your insurance situation that results in the premium no longer being income tax-deductible.

Article 6

The benefits

6.1

When are you entitled to payment of benefits?

If you are ill or incapacitated for work, you can apply to us for benefits. Based on the (types of) cover you have taken out, we will assess whether you satisfy the criteria for payment of benefits according to these conditions.

6.2

Commencement, level and duration of benefits

The commencement date of your benefits, level of benefits, and duration of payment of benefits depend on the insured cover. The types of cover insured are stated in the insurance certificate. The different types of cover are detailed in the Special Terms and Conditions.

6.3.1

What we base your benefits on

The basis for calculating your benefits is the insured annual income referred to in Article 1.5. To determine the basis, we take the insured annual income on 1 January of the year preceding the year in which your right to benefits under this insurance arose. Increases in this basis after the first day of sick leave and increases and indexations relating to previous years are not included when calculating the benefit. This is the case unless there are indexations or increases relating to the year taken as the basis, based on a decision taken by the employer and arising from the collective employment conditions.

If you had no income on 1 January of the year preceding the year in which your right to benefits under this insurance arose, then we base the calculation on your income at the time when the insurance commenced. If your part-time factor changes or if your income changed during the year, we take the weighted average of your insured income for the year in question as it was at that time.

If you are 0-35% incapacitated and you are insured in employment in which you earn at least 65% of your original insured income, this original income will remain the basis for any future benefits based on 35-80% or 80-100% disability.

6.3.2

Notifying us of your new income

If you have an individual insurance policy for which you pay the premiums yourself, you are obliged to report your new income every year. If no new income is reported in the three years preceding the first day of sick leave, we apply the last known income as the basis for the benefit and not the changed basis after the first day of sick leave.

6.4

Payment of benefits

We make the benefit payments at the end of each calendar month. Where we refer in these conditions to a percentage of your insured annual income, we pay your benefits in monthly instalments.

6.5

Tax and statutory deductions

If we are legally obliged to do so, we will deduct from your disability benefits the statutory payroll taxes and the income-related contributions due under the Dutch *Zorgverzekeringswet* (Healthcare Insurance Act). We will pay these deducted amounts to the tax authorities. You then receive a net benefit payment. The benefits statement specifies which amounts we deduct. We also provide the tax authorities with information on amounts we have deducted from your benefit.

6.6

Indexation of benefits

We may increase the benefits by a certain percentage each year. In that case, we refer to 'indexation of your benefit'. The insurance certificate gives details of whether, and if so how, indexation is applied to your benefit.

6.7

When does your benefit end?

1. On the day you become entitled to receive a state pension based on the Dutch *Algemene Ouderdomswet* (AOW), unless you are entitled to a temporary benefit (Cover B and C). These benefits may end sooner.
2. On the first day of the month following the month of your death.
3. If you are no longer ill or incapacitated for work, or if you no longer satisfy any other criteria for payment of benefits.
4. If you fail to fulfil the obligations under the insurance contract, or fail to fulfil them properly, causing our interests to be damaged. In that case, we are entitled to demand repayment of the benefits paid to you.

6.8

What does the expiry of the insurance mean for your benefits?

If the insurance expires after the first day of sick leave, the benefit conditions will still apply to you, unless you cancel the insurance yourself. We will adjust the level of benefits if your disability percentage increases or decreases. The benefits we pay will terminate permanently if the UWV stops paying your WIA benefits. In that case you may, immediately following this termination, claim the cover available in the event of less than 35% incapacity for work, provided you are insured for this cover and meet the benefit conditions.

If the WIA decision taken by the UWV assesses you as less than 35% incapacitated for work, the benefit conditions continue to apply to you. This also applies if the UWV awards you WIA benefits within four weeks of the WIA decision. The benefits we pay will stop permanently if a WIA benefit is awarded after the expiry of this four-week period.

Article 7

When do we not pay benefits?

7.1

When are you not entitled to payment of benefits?

1. If you were on sick leave on the insurance commencement date without subsequently recovering fully during a period of at least four weeks in which you returned to full working hours. Nor are you entitled to benefits if you became sick after the expiry of the insurance.
2. If you were already incapacitated for work before the insurance started, unless the circumstances outlined in Article 2.7 apply.
3. If your sickness absence commenced during the waiting period for the insurance, unless it was due to an accident.
4. If your sickness absence arose while the insurance was suspended due to non-payment or late payment of the premium or distribution costs.
5. If we receive notice that you have become incapacitated for work after three years or more. The three-year period commences after you receive the WIA decision. We then pay out up to three years retrospectively, counting from the date we received your notification of incapacity for work.
6. If one year has elapsed after we informed you of our position regarding the entitlement to benefits and you did not object in writing to our position during that year.
7. If your disability is attributable to an illness, defect or condition that is excluded from cover. Any medical exclusions are stated in your insurance certificate. Medical exclusions do not apply to long-term sickness absence cover (Cover B).
8. If your WIA benefits are suspended or declined, or if you fail to meet the conditions that we, the UWV or your employer set for you.
9. If you are imprisoned or remanded in custody, or if you are detained under a hospital order (TBS). This applies in the Netherlands as well as in foreign countries.
10. If you cancel your insurance at your own request after the first day of sick leave.

7.2

What is not covered?

Disability caused by:

1. Wilful misconduct or gross negligence on your part.
2. Fault or negligence on the part of a third party liable for this. If your incapacity for work is partly or fully due to an accident for which a third party is liable, then you are not entitled to benefits. You will then be paid an amount equal to the payment to which you would have been entitled if a third party was not liable. You will then only receive this payment on condition that you assign this part of your claim against the liable third party to us by means of a deed of assignment. In that case, we will pay you the benefit as an advance payment on that claim. If you have already definitively recovered your damages from the liable third party, an assignment of the right of recourse is no longer possible. In that case, you are not entitled to benefits.
3. Consumption of intoxicants, narcotics or stimulants. Or by taking medicines without a medical prescription or failure to heed a medical prescription.
4. Deliberate and organised violence in the Netherlands, also known as acts of war (molest). For instance, armed conflict, civil war, uprising, civil commotion, riots, insurrection and mutiny. If you can prove that your disability is not directly attributable to, advanced by or aggravated by the above, you are entitled to benefits. You are insured against acts of war abroad.
5. A nuclear reaction. This does not apply if you have become incapacitated for work as a result of radioactive substances used in industry, trade, agriculture, medicine, science, education or non-military security.

If you become incapacitated for work as a result of a cause you are not insured against, you are not entitled to payment of benefits or a waiver of premiums.

Article 8

What are your obligations if you are sick or incapacitated for work?

8.1

Reporting sick

1. You must inform us yourself that you are sick after six months to no more than one year after your first day of sick leave. You have to report sick yourself. Details of how to do this are given on our website loyalis.nl.
2. When you recover, you must inform us of this in writing within three months of your recovery date.

8.2

Treatment and medical examination

1. You must do everything reasonable to ensure that you can return to work. For instance, consulting a physician in good time. And you may not do anything that could delay your return to work or prevent your return to fitness for work.
2. You must allow yourself to be examined by a physician at our request. We will then refer you to this physician. You must give this physician all the information requested. We will pay the physician for the examination.

8.3

Which information should you submit?

1. You must give us all the information we request, such as details of your income. You can do this by giving us a pension authorisation. Our questions are intended solely to assess whether you are entitled to benefits and the appropriate level of these benefits.
2. If we appoint experts, you must provide them with the information they request.
3. In order to avoid you having to undergo stressful examinations, we may request your general practitioner or a specialist to provide us with information. We will ask you to authorise us to request such information.
4. You must forward the UWV decision concerning your WIA benefits to us, as well as related information.

You must also send us other UWV decisions, for instance on any reduction or suspension of your benefits, as well as all other data used by the UWV to substantiate their decisions.

8.4

Work and rehabilitation

1. You must be available for work on the Dutch labour market. We follow the regulations laid down in the Dutch *Werkloosheidswet* (WW, Unemployment Insurance Act), as implemented by the UWV.
2. You may not refuse any work offered to you, or abandon your work.
3. You are required to improve your options of getting work, for instance by taking retraining courses. You must also actually perform work, in so far as this can and may be expected of you.
4. You must immediately inform us when you return to work. This also applies to part-time working.

8.5

Are you going abroad?

If you wish to spend longer than two months abroad, you must discuss this with us first. If you receive benefits from us, you must in any event be and remain available for work on the Dutch labour market. This does not apply if you are fully incapacitated for work (80-100% WGA/IVA). If you fail to do so, this may have consequences for your benefits.

8.6

What if I don't comply with my obligations?

1. If you fail to fulfil an obligation under these conditions, or fail to do so fully or in a timely manner, causing our interests to be damaged or potentially damaged, your benefits will be fully or partly discontinued or you will lose your entitlement to benefits.
2. If your WIA benefit is cut as a sanction, we will not compensate this with your benefits from us.
3. If your WIA benefit is cut as a sanction, we will reduce the level of your benefits from us proportionally.

Article 9

Changes to your insurance

9.1

Are we permitted to change the premium or conditions?

Under certain circumstances, we may unilaterally adjust the premium and/or the conditions, for instance by increasing the premium or adjusting or reducing the benefit. We then apply these measures to all current and suspended insurance policies, or for all insurance policies belonging to a particular group. We may change the premium and/or the conditions when renewing a contract or before the end of the term. However, we take a cautious approach to this. If you are ill when we wish to amend the insurance conditions and that illness results in disability, the former conditions will remain applicable to you.

9.2

Changes when your insurance is extended

We may adjust the premium and/or the conditions when you renew the insurance. The changes come into force on the first day of the new contract period.

9.3

Changes during the term of your insurance

In exceptional cases, we may be forced to adjust the premium and/or conditions before the end of the term. For example, under circumstances in which we cannot wait with the adjustment until the insurance is renewed, because this would have very serious financial consequences for us or because legislation obliges us to do so. We are not able to predict when these circumstances may arise. It is our responsibility to keep the adjustment in premiums and/or conditions to a minimum.

9.4

Information on changes to your insurance

We will inform you if we alter the premiums or the conditions. We will then explain to you by letter or e-mail why we believe the interim adjustment is necessary, what we are changing and when it will come into force. If you agree to the change, you need do nothing. We will change the insurance in this case on the date stated in our letter or e-mail regarding this amendment.

9.5

What if you do not agree with the changes?

If you disagree with the changes, you must inform us that you disagree within 30 days of the date of our letter or e-mail concerning the adjustment, in writing or by e-mail. We will then terminate the insurance on the date the amendment takes effect. This does not apply if you are covered by group insurance, unless the contract provides for this possibility.

If you do not notify us within this 30-day period, the changes will also apply to you.

9.6

When are you not entitled to cancel the insurance if we change the premium or the conditions?

- In the event of changes in the law or case law that oblige us to adjust the premium or conditions.
- If an adjustment prompts an increase in the premium agreed with you in the conditions, such as an indexation, discount or surcharge.
- If an adjustment is to your advantage or does not affect your situation.

Article 10

Miscellaneous provisions

10.1

Can you transfer your rights under this insurance?

The rights under this insurance apply solely to you in person. You may not transfer these rights to someone else.

10.2

How do we inform you?

If we wish to inform you about your insurance or matters affecting your insurance we will send you a notice, using the most recent contact details we have for you. It is your responsibility to ensure we have your correct details.

If your employer has arranged group insurance, we will send a message to your employer. If your employer arranged group insurance through a broker, we will send a message to your intermediary.

10.3.1

How do we handle your personal details?

You or your employer have sent us your personal details. We use these personal details for the following purposes:

- drafting and managing insurance contracts;
- providing other financial services;
- customer relationship management;
- to inform you about products and services relevant to you, provided that you have given us your consent for this;
- to safeguard the security and integrity of the financial sector, our organisation, employees and clients.

Our procedures are governed by the Dutch *Gedragscodex Verwerking Persoonsgegevens Verzekeraars* (Dutch Code of Conduct for the Processing of Personal Data) by the Insurance Industry. This code of conduct sets out our rights and obligations regarding the processing of personal data. The full text of the code of conduct can be found on [verzekeraars.nl](https://www.verzekeraars.nl) or can be requested from the Dutch *Verbond van Verzekeraars* (Association of Insurers).

10.3.2

Who uses your personal data and other information?

Personal data and any other data are processed by:

- Loyalis and/or
- any of the legal entities belonging to our group.

Personal data may sometimes also be processed by other companies with which we cooperate for the implementation of the insurance contract, such as

- the occupational health and safety service;
- rehabilitation firms;
- debt collectors.

The responsibility for the use of personal data rests with ASR Nederland N.V.

10.4

What do we mean by fraud?

We consider fraud to be 'the deliberate prejudicing of an insurer to the advantage of the fraudster or another person'. The fraudster then misrepresents the facts to facilitate the taking out of insurance, for instance, or to obtain (higher) benefits than those he is entitled to. Here we have in mind:

- Failing to provide Loyalis with truthful information, for instance when applying for insurance or benefits.

What do we do if we suspect fraud?

If we suspect fraud, we will investigate. If we discover fraud, we will take the following measures:

- We will stop your benefits and reclaim any amounts paid and costs incurred for the investigation from you. In addition, we will stop providing our services;
- We will cancel your insurance. We will also cancel other insurance policies that you have taken out with us and with other ASR Nederland N.V. companies, even if you have not committed fraud with them;
- You will not be able to take out any other insurance cover with us or other ASR Nederland N.V. operating companies in the future;
- We will notify the Dutch *Centrum Bestrijding Verzekeringsfraude* (Centre for Insurance Fraud)

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Prevention) by the Dutch Association of Insurers that you have been registered in the incident register;

- We will report the incident to the police;
- We will report the fraud to the Dutch *Stichting Centraal Informatie Systeem* (CIS, Central Information System Foundation), a foundation that stores insurance data for insurance companies. The CIS keeps an incident register. Other insurance companies in the Netherlands consult this register.

10.5

What if you have a complaint?

You can file a complaint as follows.

1. File your complaint with us

If you have a complaint about this insurance or the services we provide, you should contact us first. You can submit your complaint digitally via loyalis.nl/klachten.

Or send a letter setting out your complaint to:

Loyalis, P.O. Box 4897, 6401 JR Heerlen.

State clearly on the envelope and letter that it concerns a complaint.

2. File your complaint with KiFiD

If you are not satisfied with the outcome after we have dealt with your complaint, you may submit your complaint to the Dutch *stichting Klachteninstituut Financiële Dienstverlening* (KiFiD), P.O. Box 93257, 2509 AG Den Haag, kifid.nl. Please do so within three months of receiving a final response from us.

3. Legal action

If you are not satisfied with the ultimate outcome, you may refer the dispute to the courts.

Section II Special Terms and Conditions

The Special Terms and Conditions contain details of the specific types of cover provided under the disability insurance.

Part A, Provisional cover is always provided upon your insurance application, even though this is not specifically stated in the insurance certificate. All other types of cover apply to you if they are stated in your insurance certificate.

The Special Terms and Conditions form an integral part of the General Terms and Conditions. The articles of the General Terms and Conditions are also applicable to the Special Terms and Conditions. In the event of a conflict between these articles, or where they result in differences of interpretation, the articles of the Special Terms and Conditions will prevail.

A Provisional cover upon your insurance application

A1 What does 'provisional cover' mean?

If you have applied for disability insurance, you are insured against the risk(s) of disability according to your chosen types of cover from the date on which we receive your application until the moment the insurance actually commences (this is the commencement date of the policy as stated in the insurance certificate).

A2 What criteria must you meet?

You must work in the service of an employer and have fallen ill and taken sick leave due to an accident in the period between your application for insurance and the actual date on which the insurance commences (the policy commencement date).

A3 What is the level of benefit if you have an accident?

We base the level of your benefits on the type(s) of insurance cover you have applied for and the annual income forming the basis for the insurance application.

A4 When does the provisional cover expire?

The provisional cover expires automatically on the date the insurance commences. It also expires if we reject the insurance application. If you do not agree to the insurance and we terminate the insurance with retroactive effect, you also derive no rights under the provisional cover. You are not entitled to derive rights from the provisional cover if you withdraw your insurance application.

B Cover in the case of long-term sickness absence

The insurance certificate states whether you are entitled to this cover.

B1 What do we mean by certain terms?

- a. Insured annual income
The insured annual income described in Article 1 of the General Terms and Conditions applies from 1 January of the second year of illness.
- b. Sickness absence
You are completely or partially unable to work due to illness or an accident.
- c. Benefits
The benefits to which you are entitled in the case of sickness absence.
- d. Definition of benefits payable on sickness absence
If you are on sick leave and your employer reduces your salary due to illness, we will supplement your income until the date on which your employment is terminated or until the date on which your employment is adjusted. This takes place as set out in Article B2. If you are

dismissed more than three years after the first day of sick leave, we will cap your benefit period at three years from your first day of sick leave. During sick leave, short periods will be aggregated if they succeed each other with an interruption of less than four weeks.

B2 What is the level of your benefit?

The level of your benefits depends on the period that has elapsed since your first day of sick leave and the applicable percentage of insured income. Both are shown in the insurance certificate. Your benefit can never total more than the amount your employer actually withheld from your income or the total amount we are legally allowed to supplement.

B3 Qualification for benefits

To qualify for benefits you must satisfy the following conditions:

- a. your first day of sick leave occurred while you were insured;
- b. you are on full or partial sick leave;
- c. you are entitled to continued payment of your wages under your conditions of employment;
- d. your employer has reduced your wages in connection with your illness and the reduction is not supplemented in any other manner;
- e. if you qualify for benefits under this cover during weeks 105 to 156 only, this will be shown in your insurance certificate. In that case, we will make it an additional condition that you are declared partially (35-80%) incapacitated or less than 35% incapacitated by the UWV during this period.
- f. you have not previously claimed benefits payable on sickness absence referred to in e.
- g. This cover is not paid out under non-contributory insurance pursuant to Article 5.4(1) or if you are entitled to benefits under Cover D or E. This cover can be paid out several times if the policy has been paid for.

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B4

Commencement of benefits

The insurance certificate states when your benefits will commence.

B5

End of benefits

Your benefits will end:

- when your employer no longer reduces your wages in connection with illness;
- if you do not wish to work for a reason other than your illness, despite the occupational physician or the UWV judging that you are fit for work;
- upon termination of your employment;
- once the maximum duration of benefits under this cover has been reached;
- if your employer is legally required under a sanction imposed by the UWV to continue paying your wages for a longer period.

B6

Final benefits

After your full recovery for at least four weeks during the second or third year of illness, you will be paid a one-off extra monthly benefit. This payment is the maximum percentage of benefits payable on sickness absence to which you are entitled according to your insurance policy. The condition is that you are still employed by your employer.

B7

What are your obligations in the case of long-term sickness absence?

If you are ill you must:

- from your second year of illness, immediately inform us if there is any change in your sickness absence;
- immediately inform us in the event you return to work fully;
- at our request, provide us with wage details and other details which we require in order to determine your entitlement to benefits;
- grant us permission to make inquiries with your employer.

C

Cover in the case of less than 35% disability.

The insurance certificate states whether you are entitled to this cover.

C1

What do we mean by certain terms?

- Insured annual income
The insured annual income defined by us in Article 6.3 of the General Terms and Conditions.
- Benefits
The benefits to which you are entitled under these special terms and conditions if you are assessed as being less than 35% incapacitated by the UWV.

C2

What is the level of your benefit?

If you are less than 35% incapacitated, you are entitled to a percentage of the difference between your insured income and the income you earn in your adapted or reassigned position, minus any compensation provided under your CAO (CBA) and any benefit under the Dutch *Werkloosheidswet* (WW, Unemployment Insurance Act). The level of this percentage is shown in the insurance certificate. If your new income is less than the earning capacity determined by the UWV, we base the calculation on the income related to the higher residual earning capacity determined by the UWV.

C3

Qualification for benefits

Qualification for benefits depends on you meeting each of the following conditions:

- you have been assessed as being less than 35% incapacitated by the UWV. You have received a WIA decision informing you of this from the UWV, and;
- your employment was terminated and you were reassigned in adapted or other employment within three years of receiving the WIA decision, resulting in you losing part of your income; and

- in that adapted employment you earn at least 65% of your indexed insured annual income; and;
- your loss of income is involuntary and not attributable to you.

C4

Commencement of benefits

The benefits commence once:

- you start working in adapted employment and you satisfy the conditions of Article C3, or;
- your WIA benefit is terminated because your disability has decreased to less than 35%: the benefit commences from the termination date of your WIA benefit. In that case too, you must satisfy the conditions of Article C3.

C5

End of benefits

The benefits end once:

- you no longer satisfy all the conditions for these benefits;
- the maximum duration of benefits has been reached. This period is stated in the insurance certificate.
- if you receive income from another source that is equal to or more than the compensation that can be claimed under this insurance;
- you receive benefits under Cover D or E.

D

Partial disability coverage (35-80% incapacitated)

The insurance certificate states whether you are entitled to this cover.

D1

What do we mean by certain terms?

- Insured annual income
The insured annual income defined in Article 6.3 of the General Terms and Conditions.
- Partially incapacitated
The UWV has determined that you are incapacitated for

between 35% and 80%. You are incapacitated according to the definition in Article 2.3 of the General Terms and Conditions.

c. Benefits

The benefits to which you are entitled under these special terms and conditions if you are partially incapacitated.

d. Income from employment

If you have new income from or in connection with employment or a business on an annual basis that you receive after you became disabled. If you have a company, the income is the profit determined for tax purposes before applying the entrepreneur's allowance and tax credit over the period in which you are partially disabled. We do not deduct income from your own business, which you already had before you became disabled, from your benefit.

e. Statutory benefits

The benefits payable under the Dutch *Wet werk en inkomen naar arbeidsvermogen* (WIA, Work and Income (Capacity for Work) Act), the Dutch *Werkloosheidswet* (WW, Unemployment Insurance Act) or the Dutch *Ziektewet* (ZW, Sickness Benefits Act).

f. Other types of benefits

Benefits to which you are entitled and that compensate your loss of income, or which supplement your statutory benefits, such as WGA benefits.

These include, for instance, the benefits provided over and above the statutory minimum; severance pay; disability pension; supplementary payments and compensation such as compensation for loss of earnings. Retirement pension or surviving dependant's pension (or optional pensions), early retirement pension or pre-pension do not qualify as other types of benefits.

D2

How do we calculate the level of your benefit?

- If you are partially disabled, we will pay benefits consisting of a percentage of the difference between your new income from employment, where this exists, and the insured annual income. The level of this percentage is shown in the insurance certificate.

- Your statutory benefits, other benefits and any continued payment of wages during illness are deducted from the benefits. If you receive a lump sum payment by way of other benefits, that amount will be converted into monthly benefit instalments. We will base our calculation in this regard on gross amounts.

- If, before becoming incapacitated, you had income from more than one type of employment, at least one of which forms of income is not insured, we will multiply your new income from employment and your statutory benefits with the fraction 'insured annual income divided by total income from your types of employment'. Other benefit payments derived from your total income will also be multiplied in the same manner.

D3

Qualification for benefits

To qualify for benefits, you must satisfy the following conditions:

- you receive benefits under the WIA;
- your employment was terminated on the grounds of disability or your temporary contract has expired. We stipulate this condition only if this is stated in your insurance certificate;
- your loss of income is involuntary and not attributable to you;
- you satisfy Article 8.4 of the General Terms and Conditions.
- the conditions listed in a to d also apply if you are dismissed from the job you were reassigned to.

D4

Commencement of benefits

Your benefit payments commence if you satisfy all the conditions for entitlement to the benefits. Your benefits do not commence until 104 weeks have elapsed since your first day of sick leave in the insured employment.

D5

End of benefits

The benefits end once:

- you no longer satisfy all the conditions for this benefit;

- the maximum duration of benefits has been reached. This is stated in the insurance certificate.

D6

Final benefits

If your WGA benefits ended because your disability percentage fell to less than 35%, you are entitled to no more than six months of further continued payment of benefits.

This only applies if your disability during this period remains below 35% and the total of your income from employment and your benefits remains below the level of your insured annual income.

If you receive benefits for less than 35% disability in addition to this continued payment of your benefits, we will only pay the highest amount by way of benefits.

Optional types of cover under partial disability coverage

Guaranteed benefits 'garantie-uitkering'

The insurance certificate makes clear whether you are entitled to this cover. If you are partially incapacitated, we will pay at least a fixed percentage of your insured annual income according to the table below. We refer to this as 'guaranteed benefits'. Guaranteed benefits are not available if you are entitled to a higher level of benefits for the partial disability cover under Article D2.

Incapacity for work in %	% of insured annual income
65-80%	7%
55-65%	6%
45-55%	5%
35-45%	4%

Rehabilitation bonus 're-integratiebonus'

The insurance certificate states whether you are entitled to a rehabilitation bonus. This is conditional on you earning at least 50% of your potential future income. If you meet this criterion, we will supplement your WGA benefits to

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a percentage of the difference between your new income and the insured annual income. The level of this percentage is shown in the insurance certificate.

Cover to supplement pension accrual 'aanvulling pensioenopbouw'

The insurance certificate makes clear whether you are entitled to cover to supplement pension accrual.

1. What does the cover entail?

You build up more pension if you are fully incapacitated than if you are partially incapacitated. In the latter case, your pension accrual may be lower. If you are entitled to cover to supplement your pension accrual, we will pay pension contributions to your pension fund to enable you to continue to build up as much pension in the case of partial disability as if you were fully disabled.

2. How much pension contribution do we pay on your behalf?

We guarantee that the contribution we pay will be sufficient to supplement your pension accrual to the level you would have reached if you were fully incapacitated. We will top up your pension accrual fully if you are partially disabled due to a work-related accident and you have reported this to your pension fund. The insurance certificate makes clear what is applicable to you.

3. Conditions for the supplement

To qualify for the supplement, you must satisfy the following conditions:

- you are insured against the risk of partial disability;
- you were dismissed from the job in which you became incapacitated for work, and you earn less than 50% of your potential earnings according to the UWV.
- you have authorised us to apply to your pension fund for voluntary continuation of the pension accrual;
- you are entitled to a disability pension from your pension fund.

4. End of the supplement:

The benefits end once:

- the right to a disability pension ends;
- you earn 50% or more of the residual earning capacity determined by the UWV;
- you no longer receive WIA benefit on the basis of 35-80% incapacity for work.

E1

Full disability cover (80-100% disability, fixed supplement)

The insurance certificate states whether you are entitled to this cover.

E1.1

What do we mean by certain terms?

- Insured annual income
The insured annual income defined in Article 6.3 of the General Terms and Conditions.
- Full and permanent incapacity for work (IVA) with little or no prospect of recovery. The UWV has determined that you are incapacitated for 80% or more. You are incapacitated according to the definition given in Article 2.3 of the General Terms and Conditions.
- Full and non-permanent incapacity for work (WGA) with the prospect of recovery. The UWV has determined that you are incapacitated for 80% or more. You are incapacitated according to the definition given in Article 2.3 of the General Terms and Conditions.
- Benefits
The benefits to which you are entitled under these special terms and conditions.

E1.2

What is the level of your benefit?

The level of your benefit depends on the type of cover and the related benefits percentage.

Type of cover

There are two types of cover. Type 1 is the cover in the case of full and permanent incapacity for work (IVA). Type 2 is the cover in the case of full and non-permanent incapacity for work (WGA). The insurance certificate states which type is applicable to you.

Benefit percentage

We pay a percentage of your insured annual income by way of benefits. The level of this percentage is shown in the insurance certificate.

E1.3

Qualification for benefits

To qualify for benefits, you must satisfy the following conditions:

- your employment was terminated on the grounds of disability or your temporary contract has expired. We stipulate this condition only if this is stated in the insurance certificate;
- you receive IVA or WGA invalidity benefits because you are incapacitated for work for 80% or more.

E1.4

Commencement of benefits

Your benefits payments commence if you satisfy all the conditions for entitlement to the benefits.

Your WGA benefits do not commence until 104 weeks have elapsed since your first day of sick leave in the insured employment. Your IVA benefits do not commence until 13 weeks have elapsed since your first day of sick leave in the insured employment. We do not pay out as long as your employer continues to pay your wages, if the condition of dismissal under Article E1.3(a) applies.

E1.5

End of benefits

The benefits end once:

- you no longer satisfy all the conditions for this benefit;
- the maximum duration of benefits has been reached.

This is stated in the insurance certificate.

E1.6

Final benefits

If your IVA or WGA benefits ended because your disability decreased to less than 35%, you are entitled to six months of further continued payment of benefits. This only applies if your disability during this period remains below 35% and the total of your income from employment and your benefits remains below the level of your insured annual income. If you receive benefits for less than 35% disability in addition to this continued payment of your benefits, we will pay the highest amount by way of benefits.

F

Occupational disability cover

The insurance certificate states whether you are entitled to this cover.

F1

What do we mean by certain terms?

- Occupational disability**
Occupational disability refers to the situation when, due to illness, defect or accident, you are fully or partly unable to perform the work belonging to the profession you practised immediately prior to the onset of the disability, with a minimum disability of 25%. We also take account of possible changes in duties, working conditions and shifting of tasks within your own work in this regard. Illness is also understood to mean illness due to pregnancy or childbirth. Pregnancy and childbirth do not, in themselves, constitute illness.

- the insured party**
The medical specialist or resident/trainee physician who is employed by an employer and is insured under the WIA.
- insured annual income**
The insured annual income defined in Article 6.3 of the General Terms and Conditions.

F2

How do we establish occupational disability?

Our medical adviser establishes occupational disability on the basis of data that you provide and from the examination performed on behalf of the UWV. If necessary, these data will be supplemented with a medical or occupational examination, at our medical adviser's discretion. When determining the occupational disability percentage, we also take into consideration the income from employment that you have received after becoming incapacitated, in so far as this results in a lower disability percentage. This may be in your own profession as well as in another profession.

We will inform you of what our medical adviser has established. If you do not notify us of an objection within six weeks, we will assume that you accept our position. We may require an additional specialised examination to be carried out to help us establish the occupational disability. The medical adviser may also reassess the occupational disability. This reassessment will take place after one year, and after each successive period of no more than five years thereafter. You may be summoned for reassessment in the interim at any time.

You may also request a reassessment yourself if your situation has changed, possibly resulting in an adjustment of your occupational disability.

F3

How can you file an objection to the determined level of disability?

If you disagree with the degree of occupational disability established by Loyalis, you may submit a written objection within six weeks of the decision being made. We will decide

in writing on your objection. We may have an examination carried out by another physician or occupational consultant to help us make our decision. In that case, you are required to cooperate with an examination, if necessary.

If you disagree with our decision, you may file a complaint with the Dutch *stichting Klachteninstituut Financiële Dienstverlening* (KiFiD). Further details are given in Article 10 of the General Terms and Conditions.

F4

Purpose of the cover

The benefits are intended to compensate for any loss of income you may sustain due to occupational disability.

F5

Level of benefit

The level of benefits is a percentage of your insured annual income according to the table below:

Incapacity for work in %	Benefit in %
0 - 25%	0%
25 - 35%	21%
35 - 45%	28%
45 - 55%	35%
55 - 65%	42%
65 - 80%	50,75%
80 - 100%	70%

If your occupational disability has decreased and this has been established by our medical adviser, the benefits will be reduced or terminated.

If the degree of occupational disability has increased, the level of benefits will be raised.

Statutory and other types of benefits will be deducted from the benefits payable under this insurance. This does not apply to Retirement Pension or Optional Pension.

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F6**Qualification for benefits**

To qualify for benefits, you must satisfy the following conditions:

- a. you are a medical specialist or resident/trainee physician in salaried employment and you are insured against the risk of occupational disability;
- b. you have been assessed as incapacitated for work (occupational disability) by our medical adviser;
- c. you have been assessed as being less than 35% incapacitated by the UWV;
- d. you do not receive WIA benefits from the UWV;
- e. your employment has been partially or fully terminated on account of your occupational disability;
- f. you are not entitled to any other forms of benefits by way of full compensation for loss of income on account of your disability.

F7**Commencement of benefits**

The benefits will commence on the date that our medical adviser assesses that you are at least 25% incapacitated for work (occupational disability). This is at least 104 weeks after the first day of sick leave which resulted in the occupational disability.

F8**End of benefits**

In addition to the instances mentioned in Article 6 of the General Terms and Conditions, the benefits will also end:

- a. if you are no longer incapacitated for work (occupational disability);
- b. if you are granted disability benefits under the WIA.

F9**Additional obligations in the case of occupational disability**

You must inform us immediately of any decision issued by the UWV concerning your degree of disability. You must also inform us immediately of any decrease in your degree of disability, if you fully or partly resume your professional activities, or if you perform other work. You are not required to perform work that does not belong to your profession.

Please visit loyalis.nl

Why Loyalis?

Loyalis provides income and pension supplements that cater optimally to your group and sectoral arrangements. Especially for the public sector, educational institutes, construction industry, care sector, and energy and utility companies.

Loyalis Verzekeringen

P.O. Box 4881
6401 JR Heerlen

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